

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                              |                           |                                                       |                                          |                                 |
|--------------------------------------------------|--------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------------|---------------------------------|
| Investigator:<br>Glenn Brown                     | Team:<br>Team # 4                                            | CCRB Case #:<br>201213830 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt.       | <input type="checkbox"/> U.S.   |
|                                                  |                                                              |                           | <input type="checkbox"/> Abuse                        | <input checked="" type="checkbox"/> O.L. | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 10/18/2012 8:30 PM | Location of Incident:<br>Rockaway Boulevard and 142nd Street | 18 Mo. SOL<br>4/18/2014   | Precinct:<br>113                                      |                                          |                                 |
| Date/Time CV Reported                            | CV Reported At:<br>IAB                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 10/24/2012 1:34 PM |                                          |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Matthew Dias | 04654  | 950320 | 101 PCT |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM John Frammosa       | 13849     | 951744 | PBQ/S    |
| 2. POM Christophe Paolillo | 29582     | 950416 | 101 PCT  |
| 3. POM Nicholas Ripa       | 25264     | 951144 | PBQ/S    |
| 4. POF Amanda Morabito     | 03986     | 950913 | 113 PCT  |

| Officer(s)           | Allegation                                                                 | Investigator Recommendation |
|----------------------|----------------------------------------------------------------------------|-----------------------------|
| A . POM Matthew Dias | Off. Language: PO Matthew Dias made remarks to § 87(2)(b) based upon race. | A . Unsubstantiated         |

### Case Summary

On October 18, 2012, § 87(2)(b) filed this complaint with the Internal Affairs Bureau via the telephone. On October 24, 2013, the CCRB received this complaint via IAB log #12-55699 (encl. B1-2). On October 18, 2012, at approximately 8:30 pm, PO Matthew Dias stopped a vehicle in which § 87(2)(b) was an occupant in the vicinity of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens and the following allegation resulted:

- **Allegation A) PO Matthew Dias made remarks to § 87(2)(b) based upon race.**  
§ 87(2)(g)  
Therefore, it is recommended that allegation B be closed as **unsubstantiated.**

On January 16, 2013, § 87(2)(b) was offered to have his complaint mediated and § 87(2)(b) declined, § 87(2)(b).

### Results of Investigation

#### Civilian Statements

##### Complainant/Victim: § 87(2)(b)

- On October 18, 2012, § 87(2)(b) was § 87(2)(b). He is a black male, § 87(2)(b) with black hair and hazel eyes. § 87(2)(b)

##### CCRB Testimony (encl. B5-12)

On October 18, 2013, approximately 20 minutes after the incident occurred, § 87(2)(b) filed this complaint with the Internal Affairs Bureau by phone. On October 26, 2012, § 87(2)(b) provided a brief telephone statement to the CCRB. On January 15, 2013, § 87(2)(b) was interviewed at the CCRB and he provided a sworn in-person statement. § 87(2)(g)

On October 18, 2012 at approximately 8:30 pm in the vicinity of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens, § 87(2)(b) pulled her two-door Honda Accord past the Rockaway Fish House Restaurant and waited for a parallel parking spot to free up behind her. After approximately one minute of waiting, the parking space was vacated by the previous vehicle and § 87(2)(b) backed into the spot. § 87(2)(b) was driving to the Rockaway Fish House from her house with her then-boyfriend and passenger, § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) had consumed any alcohol or narcotics.

Almost as soon as she had parked the car, two uniformed police officers who had been standing on the same side of the street about 20 feet behind the car, PO Matthew Dias, described as a white male, 23-24 years old, 6' tall, 165 pounds, with a slender build, short blonde hair and identified by his shield number and nameplate, and an officer identified through the investigation as PO John Frammosa, described as a white male, 23-24 years old, 5'7" tall, 200 pounds, with a stocky build, and short black hair, both approached the driver's side window. PO Frammosa asked § 87(2)(b) for her license and registration and § 87(2)(b) asked the reason for the stop. Around this time § 87(2)(b) began filming the exchange with the officers on his cellular telephone. PO Frammosa ignored her inquiry and repeated his request for her license and

registration. § 87(2)(b) produced her license and registration and asked why she had been stopped. PO Frammosa said that she had blocked a portion of the street that she was not allowed to block because there were hashed road lines painted in the area § 87(2)(b) had waited. § 87(2)(b) protested and PO Frammosa and § 87(2)(b) conversed for a short period of time. In § 87(2)(b)'s complaint to IAB, he stated that § 87(2)(b) asked PO Frammosa not to shine his flashlight in her eyes because it exacerbated her symptoms of Multiple Sclerosis and PO Frammosa responded, "I don't give a shit. I want to see what's going on." § 87(2)(b) did not make this allegation in either of his two statements to the CCRB.

PO Frammosa started to write § 87(2)(b) a ticket and she asked PO Frammosa for what he was writing the ticket. PO Frammosa told § 87(2)(b) that it was for her illegally tinted windows. § 87(2)(b) objected and produced a note from a doctor that said she was permitted to have the tints because she suffered from Multiple Sclerosis and bright light exacerbated her condition. PO Frammosa told § 87(2)(b) that she was going to be issued a summons for illegal tints.

Shortly after this exchange, PO Dias walked around to the passenger's side of the vehicle and shined his flashlight into § 87(2)(b)'s face. § 87(2)(b) asked PO Dias, "Could you not do that?" In response, PO Dias briefly removed the light from § 87(2)(b)'s face and then shined it back on his face again. § 87(2)(b) said, "I just asked you not to put the damn light in my face." In response, PO Dias said, "Get out the car." PO Dias opened the passenger side door, grabbed § 87(2)(b)'s shirt collar and pulled § 87(2)(b) out of the vehicle. Approximately eight or nine pedestrians had gathered to watch. PO Dias took § 87(2)(b)'s cellular phone out of his hand, placed it onto the hood of the car and then bent § 87(2)(b) over the hood as well. PO Dias said "Put your hands behind your back," and PO Frammosa walked over from the driver's side of the car and held § 87(2)(b) down while PO Dias placed him in handcuffs. § 87(2)(b) asked PO Dias what he had done and PO Dias told him that he was being disorderly. PO Dias radioed for backup and walked § 87(2)(b) around to the rear of the vehicle and positioned § 87(2)(b) so that he was facing the vehicle's trunk.

Within five minutes, a marked police van pulled up behind § 87(2)(b)'s car and three blue-uniformed police officers, an officer identified through investigation as PO Amanda Morabito and described as a heavysset white female, 5'11", 220 pounds, with a long black ponytail, an officer identified by the investigation as PO Christopher Paolillo and described as a heavysset white male, 5'11", 190 pounds, with short light hair, a round face, and very pale skin, and an officer identified by the investigation as PO Nicholas Ripa, described as a white male, late 40s, 5'7", 170 pounds, with a short, "marine-style" haircut, got out of the van. PO Morabito, PO Paolillo, and PO Ripa all approached the rear of the vehicle and surrounded § 87(2)(b). § 87(2)(b) turned around to look at the new officers and PO Ripa said, "What are you trying to do? What are you turning around for? Who you trying to look at?" and pushed § 87(2)(b) in the chest with his right hand, hurting § 87(2)(b)'s hands as they squeezed up against the vehicle's spoiler. § 87(2)(b) said, "What are you doing? You're squeezing my hands," to which PO Ripa said, "I don't care."

§ 87(2)(b) made eye contact with PO Paolillo and PO Ripa said, "Why are you looking at my partner? What are you eyeballing him for?" § 87(2)(b) said, "What happened? I can't look at him?" § 87(2)(b) said that he was calm during this interaction, that he did not raise his voice and that he did not use any profanity. By this time, PO Morabito had moved over to the driver's side of the vehicle and PO Frammosa, PO Paolillo, and PO Ripa stood at the back of the Accord. PO Dias asked § 87(2)(b) if he could go into his pockets and § 87(2)(b) said that he could not. Nevertheless, PO Dias reached into § 87(2)(b)'s pockets and retrieved his license, but nothing else. § 87(2)(b) asked PO Dias for his name and badge number and PO Dias flashed § 87(2)(b) his badge, which was temporarily covered by his jacket. PO Dias then pointed to his turtleneck's collar where his command's initialism appeared and began to exaggeratedly spell it

out to § 87(2)(b) § 87(2)(b) said, "I know you think we're just some dumb niggers over here, but I know what it say." PO Dias responded, "No. You're the dumb ass nigger because you're the one in handcuffs." § 87(2)(b) felt certain that PO Frammosa, PO Paolillo, and PO Ripa all heard this remark. PO Paolillo smiled in response. § 87(2)(b) did not respond to PO Dias' remark.

In his statement to the Internal Affairs Bureau, § 87(2)(b) did not allege that PO Dias made this remark, but described a slightly different exchange. PO Dias told § 87(2)(b) that he could be arrested and § 87(2)(b) asked for what he could be arrested. In response, PO Dias said, "You just a stupid nigger."

PO Dias walked over to the police van and spoke on the radio for a few minutes. PO Dias did not enter the van. PO Dias returned with a summons for § 87(2)(a) 160.50 . § 87(2)(b) remained at the back of the vehicle for another 10 minutes. Then an officer took off the handcuffs and PO Frammosa and PO Dias walked away, while PO Morabito, PO Paolillo, and PO Ripa got back into the van and drove off. § 87(2)(b) was issued two summons for illegally tinted windows. At the time of his CCRB interview, § 87(2)(b) no longer had the video footage of the incident.

**Witness:** § 87(2)(b)

- On October 18, 2013, § 87(2)(b) was § 87(2)(b) She is a Hispanic female.

**Phone Statement:** (encl. B13)

On April 9, 2013, § 87(2)(b) was contacted by the CCRB and she provided the following phone statement. On October 18, 2013, at approximately 8:30 pm in the vicinity of Rockaway Boulevard and 142nd Street, § 87(2)(b) was driving down Rockaway Boulevard and saw a parking spot about to open up. § 87(2)(b) pulled over alongside a series of parallel-parked vehicles and turned on her turn signal to indicate that she was waiting for the parallel-parked car in front of her vehicle to vacate its parking spot. PO Frammosa, who had been standing on a nearby street corner, walked into the street, stood directly in front of § 87(2)(b) vehicle and said "Pull over." § 87(2)(b) rolled down all of the vehicle's windows and turned on its interior lights and said, "I'm waiting for him to pull out of the parking spot," PO Frammosa said again, "Pull over." § 87(2)(b) pulled over and PO Frammosa walked over to the driver's side of the car. PO Frammosa asked § 87(2)(b) "Do you know why I pulled you over?" § 87(2)(b) said that she did not. PO Frammosa said that he pulled her over because she had stopped in the middle of the street. § 87(2)(b) explained that she had been waiting for a parking spot. § 87(2)(b) passenger, § 87(2)(b) spoke up at this point and asked why § 87(2)(b) had been pulled over and PO Dias, who had walked up to the passenger's side of the vehicle told § 87(2)(b) to be quiet. PO Dias shined his flashlight into the car. § 87(2)(b) asked PO Dias not to shine the light into the car because it bothered § 87(2)(b) eyes. PO Dias continued to point his flashlight into the car. § 87(2)(b) repeated § 87(2)(b) request and PO Dias continued to shine his light into the car. § 87(2)(b) asked PO Dias why they were harassing § 87(2)(b) § 87(2)(b) then volunteered that she had friends who were NYPD officers and she did not think that PO Dias was behaving properly. PO Dias invited § 87(2)(b) to call one of her friends at that very moment and § 87(2)(b) declined, citing an interest in keeping her hands in "plain sight." Neither § 87(2)(b) nor § 87(2)(b) were speaking loudly during this interaction.

§ 87(2)(b) resumed speaking with PO Frammosa and § 87(2)(b) continued to speak with PO Dias. § 87(2)(b) was not looking around the car, or moving his hands around and he did not look into the glove compartment or the center console. § 87(2)(b) stated that § 87(2)(b) was holding his cell phone. PO Dias opened the passenger's side door and said "Get out the car." § 87(2)(b) did not get out of the car and then PO Dias pulled § 87(2)(b) out of the vehicle by his arm. § 87(2)(b) did not resist PO Dias when he pulled him out of the vehicle. PO Dias

told § 87(2)(b) to place his hands on the vehicle and then he pushed § 87(2)(b) against the passenger's side of the car, handcuffed him and then brought him to the back of the vehicle, where he pushed § 87(2)(b) against the trunk of the car. Once § 87(2)(b) was taken out of the vehicle he started speaking more loudly and "with an aggravated voice." § 87(2)(b) then asked PO Frammosa why PO Dias was treating § 87(2)(b) this way. § 87(2)(b) also volunteered that she had a medical reason for her tinted windows and a note from her doctor explaining the reason. § 87(2)(b) asked PO Frammosa if there was something wrong with asking the officers the reason for the stop because § 87(2)(b)'s questions seemed to be what upset PO Dias. § 87(2)(b) said that § 87(2)(b) was not cursing or behaving "irate." § 87(2)(b) continued to accuse PO Frammosa of abusing his power.

Three more officers arrived on the scene, identified by the investigation as PO Morabito, PO Paolillo, and PO Ripa. PO Morabito spoke to § 87(2)(b) while she remained inside the vehicle. When PO Morabito arrived, PO Frammosa went to the back of the vehicle with PO Paolillo and PO Ripa. § 87(2)(b) could hear that § 87(2)(b) was becoming upset behind her vehicle, but she could not hear clearly what he was saying or what the officers were saying. § 87(2)(b) stated that she has hearing issues as a result of her Multiple Sclerosis. § 87(2)(b) asked PO Morabito if she could get out of the vehicle, but PO Morabito said that it was best if she stayed in the car. When PO Morabito stopped speaking to § 87(2)(b), § 87(2)(b) could overhear snippets of the conversation that was occurring at the back of the vehicle and at one point she heard an officer tell § 87(2)(b) that he could lock him up for disorderly conduct. § 87(2)(b) felt that § 87(2)(b) was slammed up against the back of her car several times (though she could not remember an exact count), and she asked PO Morabito to tell the officers to stop doing that. At no time was § 87(2)(b) alone in the driver's seat of the vehicle because PO Frammosa and PO Dias changed positions several times between the side of the car and the back of the car. § 87(2)(b) estimated that the car stop lasted an hour.

### **NYPD Statements:**

#### **Subject Officer: OFFICER MATTHEW DIAS**

- *At the time of the incident, PO Dias was § 87(2)(b). He is a white male, § 87(2)(b), with brown hair and hazel eyes.*
- *On October 18, 2012, PO Dias worked from 6:05 pm to 3:05 am, was assigned to Impact foot-post #17 with PO Frammosa, was dressed in uniform, and was not assigned to a vehicle.*

#### **Memo Book:** (encl. C1-3)

At 8:15 pm, PO Dias noted that he had performed a car stop on a vehicle being driven by a female named § 87(2)(b) (DOB: § 87(2)(b)) residing at § 87(2)(b) § 87(2)(b) (CID: § 87(2)(b)). The vehicle was a black 2011 Honda, license plate § 87(2)(b). The stop was performed at the corner of Rockaway Boulevard and 142<sup>nd</sup> Street. The front passenger's side window tint was 33% and the front driver's window tint was 33%. Two summonses were prepared by PO Frammosa (shield # 13849). At 8:30 pm, the male passenger in the vehicle, § 87(2)(b) (DOB: § 87(2)(b)), residing at § 87(2)(b) § 87(2)(b), Rosedale, NY (DIC: § 87(2)(b)) was issued a C summons for § 87(2)(a) 160.50 in front of 141-06 Rockaway Boulevard. § 87(2)(b) A Stop, Question, and Frisk report was prepared for § 87(2)(b) on the suspicion of criminal possession of a weapon. § 87(2)(b) displayed violent, threatening behavior, exhibiting threatening tone. § 87(2)(b) was handcuffed and frisked for PO Dias' safety. PO Paolillo and PO Morabito (van

#8464) and PO Ripa were also on the scene. At 8:40 pm, two summonses were prepared by PO Frammosa and one summons and one Stop, Question, and Frisk report were prepared by PO Dias.

**Handwritten UF250 Report:** (encl. C4-5)

On October 18, 2012, at approximately 8:15 pm, PO Dias stopped § 87(2)(b) in front of 141-08 Rockaway Boulevard in Queens for suspected Criminal Possession of a Weapon. PO Dias noted that he had observed § 87(2)(b) for one minute prior to stopping him and that the stop lasted for five minutes. PO Dias stopped § 87(2)(b) because he had engaged in threatening behavior towards the police and for making furtive movements. PO Dias handcuffed and placed § 87(2)(b) against a wall/car and did this for his own defense. PO Dias noted that he had frisked § 87(2)(b) because § 87(2)(b) made verbal, violent threats, made furtive movements, refused to comply with his directions which lead PO Dias to reasonably fear for his safety, was suspected of a violent crime and of having a weapon due to his violent behavior. PO Dias also noted that § 87(2)(b) was searched because he felt a hard object, though a weapon was not found. PO Dias noted that the area in which he had stopped § 87(2)(b) had a high incidence of the suspected crime.

**Summons:** (encl. C6-7)

§ 87(2)(a) 160.50

**CCRB Statement:** (encl. C10-12)

On April 24, 2013, PO Dias was interviewed at the CCRB and provided the following statement. On October 18, 2012 at approximately 8:30 pm at the intersection of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens, PO Dias and PO Frammosa both observed a vehicle approximately 100-150 feet away with excessively tinted windows driving eastbound on Rockaway Boulevard. As the vehicle approached a red light at the intersection of 142<sup>nd</sup> Street and Rockaway Boulevard, the officers stepped into the street to stop the vehicle using their flashlights. PO Dias could not recall which officer made the decision to stop the vehicle. It did not seem to PO Dias that the vehicle was trying to park as it pulled up to 142<sup>nd</sup> Street. The intersection was lit by several streetlights and from the radiant light from the storefronts in the area. Aside from the vehicle's tinted windows, PO Dias could not recall if there was anything else that stood out about the vehicle. PO Dias stated that the purpose of the stop was to enforce the vehicle and traffic law regulations regarding tinted windows. PO Dias said that they stopped the car to issue its driver a summons. The car came to a stop and the officers guided it to a "safe part of the roadway." PO Frammosa walked over to the driver's side of the vehicle and PO Dias walked over to the passenger's side of the vehicle. Immediately after the stop began, both passenger's side and driver's side windows were rolled down. PO Dias stated that he could not hear what his partner was saying to the driver of the vehicle, § 87(2)(b) because they were in a crowded commercial area, but he could hear that PO Frammosa quickly became engaged in an argument with § 87(2)(b). PO Dias saw that § 87(2)(b) was refusing to provide her license and registration to PO Frammosa, so PO Dias walked over to the driver's side of the vehicle. PO Dias explained the reason for the stop to § 87(2)(b) and § 87(2)(b) said that her tints were legal because she had a doctor's note for them. PO Dias asked to see the doctor's note but § 87(2)(b) did not have the doctor's note with her. PO Dias also told § 87(2)(b) that in addition to a doctor's note, § 87(2)(b) also needed a DMV exemption sticker for her tinted windows in order to make them legal. While PO Dias was still on the driver's side of the vehicle, § 87(2)(b) the passenger in the vehicle, had started to film the officers on his cell phone. PO Dias did not see

from where § 87(2)(b) produced the phone. PO Dias told § 87(2)(b) “You’re good, you’re good. Keep calm and you won’t have a problem.” § 87(2)(b) grew more agitated, began shouting, and told PO Dias, “Get the light out of my eyes, dick,” in response to PO Dias shining his flashlight into the car. § 87(2)(b) started moving his hands around, reaching towards the glove compartment and then moving his hands towards the floor of the vehicle. § 87(2)(b) did not open the glove compartment. § 87(2)(b) also said, “No one is untouchable.”

After approximately two minutes on the driver’s side of the vehicle, PO Dias returned to the passenger’s side and because the passenger’s side window was already rolled down PO Dias was able to speak with § 87(2)(b) without any issue. PO Dias said, “Look man, just calm down for now. You’re not in trouble right now. The driver is in question right now with the tinted windows.” § 87(2)(b) grew more agitated and started raising his voice, causing a crowd to form around the vehicle. PO Dias told § 87(2)(b) to keep his hands where PO Dias could see them and to stop moving his hands, but § 87(2)(b) did not comply. PO Dias grew concerned for his safety so he told § 87(2)(b) to get out of the vehicle, but § 87(2)(b) did not immediately comply. PO Dias opened the car door in order to “guide” § 87(2)(b) out. § 87(2)(b) stepped out of the vehicle under his own volition, but PO Dias did not recall if he had touched § 87(2)(b). PO Dias stated that he might have placed his arms on § 87(2)(b) but that he did not forcibly remove § 87(2)(b) and that any contact that he made with § 87(2)(b) was a “guiding motion.” PO Dias did not recall if this “guiding motion” involved one or two hands being placed on § 87(2)(b). Once § 87(2)(b) was out of the vehicle, § 87(2)(b) placed his cell phone on the roof of the vehicle. Then PO Dias handcuffed him and then immediately frisked § 87(2)(b)’s waistband, pockets, and legs in order to check if § 87(2)(b) had any weapons. PO Dias felt a small hard, rectangular object in one of § 87(2)(b)’s pockets, so he reached into the pocket and pulled out a cigarette lighter. Before he removed the lighter PO Dias could not recall if he asked § 87(2)(b) what was in his pocket and § 87(2)(b) did not volunteer what was inside his pocket. PO Dias stated that if § 87(2)(b) had told him that the object was a lighter, PO Dias still would have double-checked and removed the object from § 87(2)(b)’s pocket. PO Dias suspected that this lighter was a pocket knife. PO Dias did not detect anything else in § 87(2)(b)’s pockets during the frisk. PO Dias did not recall if he reached inside any of § 87(2)(b)’s other pockets. § 87(2)(b) was compliant as PO Dias handcuffed and frisked him. After PO Dias frisked § 87(2)(b) PO Dias brought § 87(2)(b) to the rear of the vehicle. PO Dias took § 87(2)(b)’s cell phone from the roof of the vehicle and brought it with them to the rear of the vehicle where he placed it on the trunk. PO § 87(2)(b)’s behavior did not change significantly once he exited the vehicle.

PO Ripa arrived at the scene from a nearby foot-post sometime after PO Dias removed § 87(2)(b) from the vehicle, but PO Dias could not be certain when exactly PO Ripa arrived. PO Paolillo and PO Morabito drove by in van #8464 and one of them asked if PO Dias and PO Frammosa needed any assistance and one of the officers told the occupants of the van to wait for a little bit. Soon, PO Paolillo and PO Morabito exited the van and PO Paolillo stood at the rear of the vehicle and PO Morabito stood on the driver’s side to speak with § 87(2)(b).

While § 87(2)(b) was outside of the vehicle, he continued to yell and shout, but PO Dias could not recall exactly what he was saying. PO Dias did not recall if § 87(2)(b) used the word “nigger” while he was outside of the vehicle. Neither PO Dias nor any of the other officers on the scene used the word “nigger” or told § 87(2)(b) that he was “the dumb nigger because he was in handcuffs.” PO Dias asked § 87(2)(b) where his license was and § 87(2)(b) directed PO Dias to his wallet. PO Dias took § 87(2)(b)’s wallet off of § 87(2)(b)’s person, though PO Dias could not recall exactly from where, and then took § 87(2)(b)’s license out of the wallet. PO Dias filled out a summons for § 87(2)(a) 160.50 for § 87(2)(b) then removed the handcuffs and handed back § 87(2)(b)’s license.

§ 87(2)(b) was outside of the vehicle for five to ten minutes and he was in handcuffs the entire time. The officers used a tint meter to determine that the windows were tinted at 33%.

**Witness Officer: OFFICER JOHN FRAMMOSA**

- *At the time of the incident, PO Frammosa was § 87(2)(b). He is a white male, § 87(2)(b), with brown hair and hazel eyes.*
- *On the date of the incident, PO Frammosa worked from 6:30 pm to 3:05 am, was in uniform and on foot, and assigned to Impact with PO Matthew Dias.*

**Memo Book:** (encl. C13-15)

At 8:15 pm, there was a car stop at Rockaway Boulevard and 142<sup>nd</sup> Street. At 8:33 pm, two “B” summons were served to § 87(2)(b) (DOB: § 87(2)(b), § 87(2)(b) for illegal tinted windows, 33% for both front driver’s side and front passenger’s side at Rockaway Boulevard and 142<sup>nd</sup> Street. A summons was served by PO Dias, shield #4654, to § 87(2)(b) (DOB: § 87(2)(b)) of § 87(2)(b) for § 87(2)(a) 160.50 in front of 141-05 Rockaway Boulevard. A UF250 was prepared for criminal possession of a weapon. Female driver was non-compliant and irate, caused a crowd to gather in commercial area.

**CCRB Statement:** (encl. C17-19)

On April 9, 2013, PO Frammosa was interviewed at the CCRB and provided the following statement. On October 18, 2012 at approximately 8:30 pm, PO Frammosa and PO Dias were standing on the corner of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens when a 2011 Honda pulled up in front of them. PO Frammosa noticed that the car had overly tinted windows and the officers decided to approach. PO Frammosa went to the driver’s side of the vehicle and PO Dias went to the passenger’s side of the vehicle and they escorted the car to a safer portion of the road. As soon as the officers approached the vehicle, the man seated in the passenger’s seat, § 87(2)(b) began filming both officers on his cell phone. Once the car was parked, both officers began separate conversations with the individuals on their respective sides of the vehicle. PO Frammosa did not hear what PO Dias was talking about with § 87(2)(b) however he heard that they were speaking loudly. PO Frammosa did not know if PO Dias feared for his safety during his conversation with § 87(2)(b). While § 87(2)(b) was in the vehicle, PO Frammosa did not fear for his own safety. PO Frammosa explained to the driver, § 87(2)(b) that she had been stopped for illegally tinted windows. PO Frammosa asked § 87(2)(b) for her license and registration and § 87(2)(b) refused to provide them. § 87(2)(b) told PO Frammosa that she did not have to provide her information and told PO Frammosa that he was performing his job incorrectly. After approximately five minutes from the beginning of the stop, PO Frammosa overheard PO Dias say, “Step out of the car,” and § 87(2)(b) did not exit the vehicle. PO Frammosa only heard PO Dias tell § 87(2)(b) to exit the vehicle one time and PO Frammosa did not hear § 87(2)(b)’s verbal response to PO Dias’ command. PO Dias opened the car door, grabbed § 87(2)(b) by the arm and removed § 87(2)(b) from the vehicle. PO Frammosa did not know how § 87(2)(b) reacted to his removal from the vehicle. PO Frammosa did not recall exactly how PO Dias removed § 87(2)(b) from the vehicle. On the passenger’s side of the vehicle, PO Dias said, “Put your hands behind your back,” then pulled § 87(2)(b)’s hands behind his back and § 87(2)(b) pulled his hands away. PO Dias pulled § 87(2)(b)’s hands behind his back one more time and was then able to handcuff § 87(2)(b). PO Frammosa did not recall PO Dias placing anything on the roof of the car. PO Frammosa could not recall what § 87(2)(b) was saying at the time of his handcuffing. PO Frammosa did not assist PO Dias in



taking § 87(2)(b) out of the car or handcuffing § 87(2)(b). At PO Dias' direction, § 87(2)(b) walked by his own volition to the back of the vehicle.

Once § 87(2)(b) was at the back of the vehicle, a crowd of approximately 15 civilians began to gather around and watch. Though § 87(2)(b) was speaking loudly while he was at the back of the vehicle, PO Frammosa did not hear what he was saying because he was focused on § 87(2)(b). Approximately one minute after § 87(2)(b) was handcuffed three additional officers arrived on the scene at the same time. PO Ripa, who had been stationed at a nearby footpost, walked over to the rear of § 87(2)(b) vehicle, and PO Paolillo and PO Morabito arrived in an RMP. These officers "saw the commotion" and arrived without PO Dias or PO Frammosa making a call over their radios. PO Morabito walked over to driver's side of the vehicle to speak with § 87(2)(b) and PO Frammosa. PO Paolillo stood at the back of the vehicle with § 87(2)(b).

PO Frammosa went to the back of the vehicle while § 87(2)(b) was still in handcuffs for approximately one to two minutes in order to ask PO Dias what had happened. PO Dias reported that § 87(2)(b) was looking around the car, had placed his hands in the glove compartment, and PO Dias felt safer with § 87(2)(b) outside the vehicle. PO Frammosa did not see § 87(2)(b) reach for the vehicle's glove compartment or § 87(2)(b) "acting furtively." While PO Frammosa was at the back of the vehicle, PO Ripa and PO Paolillo were speaking with § 87(2)(b) but PO Frammosa did not hear what they were talking about. PO Frammosa did not hear § 87(2)(b) use the phrase "dumb nigger," nor did he hear PO Dias say, "you're the dumb nigger because you're in handcuffs." PO Frammosa did not hear any of the other officers say that § 87(2)(b) was "the dumb nigger because you're in handcuffs." PO Frammosa was not at the back of the car when § 87(2)(b) was frisked and searched. PO Frammosa did not see PO Dias or any of the other officers search or frisk § 87(2)(b). Once PO Frammosa finished speaking with PO Dias, he entered PO Morabito and PO Paolillo's RMP in order to prepare two summonses for § 87(2)(b) for illegally tinted windows. Once PO Frammosa had finished preparing the summonses, he exited the RMP, handed them to § 87(2)(b) and PO Frammosa returned to his footpost to write in his memo book. PO Frammosa did not see § 87(2)(b) being taken out of handcuffs, nor did he know when it happened. PO Frammosa estimated that § 87(2)(b) was in handcuffs for approximately fifteen minutes.

**Witness Officer: OFFICER CHRISTOPHER PAOLILLO**

- *At the time of the incident, PO Christopher Paolillo was § 87(2)(b). He is a white male, § 87(2)(b), with black hair and brown eyes.*
- *On the date of the incident, PO Paolillo worked from 6:30 pm to 3:05 am with PO Morabito, was assigned to Impact in van #8464, and was dressed in uniform.*

**Memo Book: (C27-28)**

At 8:20 pm, PO Paolillo noted in his memo book that he had pulled up to PO Dias and PO Frammosa as they were performing a car stop on Rockaway Boulevard in front of 141-08 Rockaway Boulevard. § 87(2)(b) § 87(2)(b) (DOB: § 87(2)(b) residing at § 87(2)(b) would not comply with PO Dias. § 87(2)(b) was issued summonses for § 87(2)(a) 160.50. § 87(2)(b) was cursing, yelling, and taping the car stop. He was also using violent and threatening behavior, which caused a crowd to form. Three summonses were issued by PO Dias and PO Frammosa. The driver of the stopped vehicle was § 87(2)(b) (DOB: § 87(2)(b)), who resides at § 87(2)(b). She was issued summonses for illegal tints on her vehicle.

**CCRB Statement: (C29-30)**

On April 30, 2012, PO Paolillo was interviewed at the CCRB and provided the following statement. On October 18, 2012, at approximately 8:30 pm at the intersection of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens, PO Paolillo or his partner PO Morabito, he could not recall who, drove past an ongoing car stop that PO Dias and PO Frammosa had performed. PO Frammosa or PO Morabito performed a U-turn and parked the marked police van approximately one car length behind the stopped vehicle, straddling half of a parallel parking spot and half of the traffic lane. There had not been a radio run for backup, but upon observing the car stop, PO Paolillo and PO Morabito decided to back up the other officers. At the time that the van parked, PO Dias was standing on the passenger's side of the stopped vehicle and PO Frammosa was standing on the driver's side. The occupants of the vehicle were both still seated inside. There was nothing in between the van and the stopped vehicle so PO Paolillo had a clear view of the vehicle and the area was lit by a "couple" street lights. PO Dias removed the passenger, § 87(2)(b) from the passenger side of the vehicle and handcuffed him. PO Paolillo did not see the manner in which § 87(2)(b) exited the vehicle and did not see PO Dias place his hands on § 87(2)(b). PO Paolillo said that the stopped vehicle obstructed his view of the specifics of § 87(2)(b)'s exit. Once PO Paolillo observed PO Dias handcuff § 87(2)(b), PO Paolillo and PO Morabito exited the van. Prior to exiting the van, PO Paolillo did not speak with PO Dias or PO Frammosa, but he observed that § 87(2)(b) had an angry expression on his face and was yelling at PO Dias. PO Paolillo could not hear what § 87(2)(b) was saying. PO Paolillo went to the passenger's side and PO Morabito went to the driver's side. PO Paolillo and PO Dias asked § 87(2)(b) to walk to the rear of the vehicle and § 87(2)(b) complied. At the rear of the vehicle, § 87(2)(b) cursed at the officers and accused them of racism. § 87(2)(b) said that police officers only pull over black people and that it was "ridiculous" that he had been stopped. PO Paolillo told § 87(2)(b) that he had been pulled over illegally tinted windows. § 87(2)(b) said that he had called the Internal Affairs Bureau while he was in the vehicle and that he was recording the audio of the incident on his telephone. PO Paolillo said that § 87(2)(b)'s phone was either on the back of the vehicle or in his pocket. PO Paolillo did not frisk or search § 87(2)(b) and he did not see § 87(2)(b) be frisked or searched by another officer. PO Paolillo did not recall § 87(2)(b) asking for his or PO Dias' name and shield number. § 87(2)(b) did not use the word "nigger" in his presence. PO Paolillo did not hear any officers use the word "nigger" while in his presence. PO Paolillo did not hear § 87(2)(b) or any officer say that § 87(2)(b) was the "dumb nigger in handcuffs."

**Witness Officer: OFFICER NICHOLAS RIPA**

- *At the time of the incident, PO Nicholas Ripa was § 87(2)(b). He is a white male, § 87(2)(b) with brown hair and brown eyes.*
- *On October 18, 2013, PO Ripa was assigned to an Impact foot patrol, was in uniform, did not have a partner and worked from 6:30 pm to 3:05 am.*

**Memo Book:** (encl. C31-33)

On October 18, 2012, PO Ripa noted that at 8:30 pm at 141-20 Rockaway Boulevard he backed up PO Dias and PO Frammosa with a car stop. PO Paolillo and PO Morabito were also present.

**CCRB Statement:** (encl. C34-35)

On May 15, 2013, PO Ripa was interviewed at the CCRB and provided the following statement. On October 18, 2012, at approximately 8:30 pm, at the intersection of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens, PO Ripa stepped into a Chinese food restaurant in order to complete a memo book entry from a previous incident. PO Ripa heard someone screaming

outside and then decided to step outside to investigate. Five or six car-lengths from the exit of the restaurant and on the same side of Rockaway Boulevard, PO Ripa saw PO Paolillo and PO Dias performing a car stop in which both the driver, known to the investigation as § 87(2)(b) and the passenger, known to the investigation as § 87(2)(b) of the stopped vehicle were behaving in an “irate” manner. Upon exiting the storefront, PO Ripa recognized that § 87(2)(b) was the person he had heard screaming while he was inside. PO Ripa did not recall what § 87(2)(b) was screaming, but remembered that he was being very loud, aggressive, and threatening in the things that he was saying. § 87(2)(b) was still seated inside the passenger’s seat of the vehicle when PO Ripa walked over to the passenger’s side of the vehicle. Soon after walking over to the vehicle, PO Ripa could not recall exactly how long after, PO Dias or PO Frammosa, PO Ripa could not recall who, asked § 87(2)(b) to step out. PO Ripa did not recall if § 87(2)(b) immediately complied, nor did he recall how many times PO Dias or PO Frammosa asked him to step out of the vehicle. PO Ripa did not recall if § 87(2)(b) opened the passenger’s side door of the vehicle himself. PO Ripa did not recall if PO Dias or PO Frammosa placed their hands onto § 87(2)(b) in order to take him out of the car. PO Ripa did not recall the manner in which § 87(2)(b) was brought to the rear of the vehicle, whether he walked or was escorted by one of the officers. PO Ripa did not recall if § 87(2)(b) was handcuffed as soon as he got out of the vehicle or if he was handcuffed when he got to the rear of the vehicle. PO Ripa did not recall if § 87(2)(b) was holding anything in his hands nor if he was recording the officers with his phone.

PO Ripa did not recall when PO Paolillo and PO Morabito arrived at the scene. PO Ripa did not recall if they arrived before § 87(2)(b) exited the vehicle or after he exited the vehicle. However, once § 87(2)(b) was handcuffed and standing at the rear of the vehicle, PO Ripa, PO Paolillo, and PO Dias were standing at the back of the vehicle as well. PO Morabito stood on the driver’s side of the vehicle and spoke with § 87(2)(b). At the rear of the vehicle, § 87(2)(b) continued to be very upset and he looked PO Ripa in the eye and said something to the effect of, “You’re not from the city; you’re a white kid from Long Island. Anybody can get got. Anybody can get touched.” PO Ripa responded, “What does that mean? What are you saying to me? Are you threatening me? You telling me you gonna kill me? You telling me you gonna beat me up?” § 87(2)(b) said, “You know exactly what I mean. You know exactly what can happen to you.” § 87(2)(b) told the other officers that they had no right to stop him. While he was at the rear of the vehicle, § 87(2)(b) was standing still. PO Ripa did not recall if § 87(2)(b) was frisked or searched. PO Ripa also did not recall if he frisked or searched § 87(2)(b). PO Ripa did not recall if § 87(2)(b) produced his identification. PO Ripa did not recall if § 87(2)(b) used the word “nigger” while he was at the back of the vehicle. PO Ripa did not recall if § 87(2)(b) asked for any of the officers’ shields, commands, or names. PO Ripa did not recall if § 87(2)(b) said that he was the “dumb nigger in handcuffs.” Neither PO Dias, PO Frammosa, nor any of the officers on the scene said that § 87(2)(b) was the “dumb nigger in handcuffs.” PO Ripa said that § 87(2)(b) was saying “crazy things,” though he could not recall them exactly. PO Ripa estimated that the entire stop lasted five to ten minutes.

§ 87(2)(b) and § 87(2)(b) were both issued summonses, but PO Ripa did not recall if it was PO Dias or PO Frammosa who issued the summonses.

**Witness Officer: OFFICER AMANDA MORABITO**

- *At the time of the incident, PO Morabito was § 87(2)(b). She is a white female, § 87(2)(b), with black hair and brown eyes.*
- *On October 18, 2012, PO Morabito worked from 6:30 pm to 3:05 am, was assigned to Impact Patrol with PO Paolillo, was in uniform and was the passenger in marked RMP #8464.*

**Memo Book:** (C20-24)

On October 18, 2012, at 8:20 pm PO Morabito pulled up to PO Dias and PO Frammosa as they were making a car stop in front of 141-08 Rockaway Boulevard in Queens. PO Dias and PO Frammosa had stopped § 87(2)(b) from § 87(2)(b) (DOB: § 87(2)(b)), and § 87(2)(b) would not comply with PO Dias. § 87(2)(b) was issued summonses for § 87(2)(a) 160.50. § 87(2)(b) was cursing, yelling, taping the car stop, using violent and threatening behavior, and causing a crowd to form. Three summonses were issued by PO Dias and PO Frammosa. The driver of the car, § 87(2)(b) of § 87(2)(b) (DOB: § 87(2)(b)) was issued summonses for illegal tints on vehicle.

**CCRB Statement:** (C25-26)

On April 19, 2013, PO Morabito was interviewed at the CCRB and provided the following statement. On October 18, 2012, at approximately 8:30 pm in the vicinity of Rockaway Boulevard and 142<sup>nd</sup> Street in Queens, PO Paollilo was driving a marked, empty prisoner van in which PO Morabito was a passenger, when they noticed that two officers, PO Dias and PO Frammosa, had made a car stop. PO Paollilo pulled up directly behind the stopped vehicle and parked the prisoner van. PO Morabito did not recall which officer was speaking with which person inside of the stopped car. PO Morabito and PO Paollilo observed the stop from inside the van for less than five minutes before they exited. Before PO Morabito and PO Paollilo exited the van, PO Dias or PO Frammosa, PO Morabito did not recall who, asked the passenger in the stopped vehicle, § 87(2)(b) to exit and walk to the back of the car. PO Morabito could not recall who asked § 87(2)(b) to step out of the vehicle. PO Morabito then exited the prisoner van, walked to the driver's side of the vehicle to speak with its driver, § 87(2)(b) and PO Morabito stayed on the driver's side of the vehicle for the remaining duration of the car stop. PO Morabito never went to the rear of the vehicle. PO Morabito and § 87(2)(b) calmly discussed the reason for the car stop and about § 87(2)(b) illegally tinted windows. PO Morabito did not know for how long she spoke with § 87(2)(b). PO Morabito's back was turned to the rear of the vehicle and she was speaking with § 87(2)(b) for the remainder of the stop. Consequently, PO Morabito did not hear what was being said and did not know who was saying what to each other. PO Morabito stated that § 87(2)(b) was screaming while he was at the back of the vehicle. PO Morabito did not know who § 87(2)(b) was screaming at, but she speculated that § 87(2)(b) was shouting and cursing "in general." PO Morabito did not know where PO Paollilo stood during the car stop.

Though PO Morabito wrote in her memo book that § 87(2)(b) was taping the incident, behaving violently and cursing, she did not have an independent recollection of any of these things. PO Morabito did not recall if § 87(2)(b) was screaming before he got out of the vehicle. PO Morabito did not see if § 87(2)(b) was frisked or searched. PO Morabito did not hear § 87(2)(b) use the word "nigger" while he was stopped or hear him say that he was "the dumb nigger because he was in handcuffs." PO Morabito did not hear any of the officers say that § 87(2)(b) was, "the dumb nigger because he was in handcuffs." PO Morabito "had no idea" how long the incident was from the time that she stepped out of the prisoner van to the time that the civilians were issued summonses.

**Summons/Arrest for Incident and Disposition**

- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 26, 2013 with regard to the incident (encl. E1).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A2).

### Subject Officer's CCRB History

- PO Matthew Dias has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. A1).

### Conclusion

### Identification of Subject Officer

During his interview at the CCRB, PO Dias acknowledged his participation in the incident.

### Investigative Findings and Recommendations

- **Allegation A) PO Matthew Dias made remarks to § 87(2)(b) based upon race.**

In both of his statements to the CCRB, § 87(2)(b) alleged that while he was in handcuffs at the rear of § 87(2)(b) vehicle, PO Dias said, "You're the dumb ass nigger because you're the one in handcuffs." In his statement to IAB, a statement that § 87(2)(b) made approximately 20 minutes after the incident concluded, § 87(2)(b) simply alleged that PO Dias said to him, "You just a stupid nigger." For her part, § 87(2)(b) stated that she was not capable of hearing anything specific that was being said at the rear of the vehicle due to her position inside the car and due to a hearing problem.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), PO Dias, PO Frammosa, PO Ripa, and PO Paolillo all denied saying or hearing any other officer make any remark involving the word "nigger." PO Paolillo stated that § 87(2)(b) had called the Internal Affairs Bureau while he was at the rear of the vehicle, but the Command Center Recording revealed that § 87(2)(b) did not call until after the incident had concluded and thus, the alleged offensive remark was not recorded.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **allegation A** be closed as **unsubstantiated**.

Team:   4  

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